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State Legislature holds special session to jumpstart effort to safeguard Californians from potential federal overreach

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The California State Senate, led by Senate President pro Tempore Mike McGuire (D-North Coast), convened to begin the 2025-26 Legislative Session on Monday, welcoming in newly elected, re-elected and returning members, and kicking off the extraordinary session that is focused on protecting California's people, policies and progress from federal interference.

Following Gov. Gavin Newsom's proclamation, the California Legislature convened the first day of the special session to provide legal resources to protect California values, the state's economy, fundamental civil rights, reproductive freedom, clean air and clean water, and working families — including immigrant families.

The special session, which will establish a new litigation fund, comes in response to the incoming federal administration's signaled policy proposals that Newsom's office said would harm Californians.

The extraordinary session will run concurrently with the regular Legislative session.

"California is a tent pole of the country — from the economy to innovation to protecting and investing in rights and freedoms for all people," said Newsom. "We will work with the incoming administration and we want President Trump to succeed in serving all Americans. But when there is overreach, when lives are threatened, when rights and freedoms are targeted, we will take action. And that is exactly what this special session is about — setting this state up for success, regardless of who is in the White House."

"With potentially billions of dollars in federal funding on the line if the President-elect follows through on his promises, we must be — and we are — ready to act on day one," said Attorney General Rob Bonta. "I am looking forward to working with the governor and the Legislature to ensure my office has the resources we need to meet the demands of the moment and robustly defend California's people, progress, and values."

"Where we can work with the incoming federal administration, we will," Senate President pro Tem Mike McGuire. "Where the rights, safety, and economic security of Californians may be in danger, we will be prepared and we will respond. New and returning members of the Senate all took a solemn oath today to defend California. We believe in that oath. And we will act accordingly with the Governor and our colleagues in the Assembly."

"While we always hope to collaborate with our federal partners, California will be ready to vigorously defend our interests and values from any unlawful action by the incoming Trump Administration," said Assembly Budget Chair Jesse Gabriel. "We know from President-elect Trump's statements — and from the more than 120 lawsuits that California filed during the first Trump Administration — that we must be prepared to defend ourselves. We're not going to be caught flat-footed."

New litigation fund

The governor is working with lawmakers to establish a litigation fund to bolster the state's legal resources in response to the incoming federal administration's signaled policy proposals that would harm the state.

Senate Democrats, led by Pro Tem McGuire and in partnership with Senate Budget Chair Scott Wiener (D-San Francisco) and Senate Majority Leader Lena Gonzalez (D-Long Beach), have introduced a budget bill as part of the special session.

SBX1-1, authored by Sen. Wiener, includes $25 million in funding proposed by Gov. Newsom for the California Department of Justice to bolster legal resources, and adds $10 million for county counsels and city attorneys for similar purposes. It also expands on that effort by including $25 million for legal aid efforts and legal services for local communities.

In keeping with the focus of the governor's proclamation, the bill specifies that the grant funding for county counsels and city attorneys would be related to issues of reproductive health, the state's clean air, clean water and climate laws, immigrant rights and LGBTQ civil rights. It also would add funding for legal services focused on grants for nonprofit pro bono legal teams, immigration and detention legal services, and data security projects.

Newsom's office said the fund is meant to defend California from unconstitutional federal overreach, challenge illegal federal actions in court and take administrative actions to reduce potential harm.

The proposed legal investment has the potential to yield significant returns for California families and protect billions of dollars in state funding, Newsom's office reported. The new litigation fund will help safeguard critical funding for disaster relief, health care programs and other vital services that millions of Californians depend on daily.

It will also position the state to defend against unlawful federal actions that could jeopardize not only tangible resources but also immeasurable protections, such as those related to health and civil rights, Newsom's office said.

During President-elect Trump's first term, his administration made multiple attempts to withhold federal funds from California and harm the state.

From 2017 to 2021, the California DOJ filed 122 lawsuits against the Trump administration in response. The state invested approximately $42 million to support this litigation.

This legal action not only safeguarded California's values and residents but also delivered tangible financial benefits, Newsom's office said.

For example, in just one successful case, the federal government reimbursed California nearly $60 million in federal public safety grants as a result of litigation. In another case won against the Trump administration for delaying energy efficiency standards, the state's victory was estimated to generate over $8 billion in energy savings for consumers over the next three decades.

In another separate case, the state's litigation protected billions of dollars in federal funding for California's public health care and other federally funded programs that provide crucial health, education and labor services.

What comes next

Proposed legislation is expected to be introduced in the state Legislature. In the coming weeks, the Legislature has indicated it will hold committee hearings on the legislation. During this process, the governor will actively collaborate with legislative leaders and the attorney general to refine and advance the measure.

The legislation is expected to reach the governor's desk and be signed into law before Jan. 20, 2025, the day Trump takes office.

While the state is prepared to lead efforts to challenge any unlawful actions by the federal government, Gov. Newsom said he is committed to working with President-elect Trump wherever there is common ground to improve the lives of nearly 40 million Californians.

Last month, Governor Newsom traveled to Washington, D.C., for a series of meetings at the White House and on Capitol Hill to discuss the approval of key initiatives to improve health care, mental health and clean air in the state, as well as the approval of disaster relief funds.

Newsom's office said he is looking to build on that momentum to continue to deliver for millions of Californians who rely on essential federal funding and programs that support their daily lives.

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